

Section 19.

SCHEDULE.**ENACTMENTS REPEALED.**

Session and Chapter.	Short Title.	Extent of Repeal.
62 & 63 Vict. c. 47.	The Private Legislation Procedure (Scotland) Act, 1899.	The whole Act.
3 Edw. 7, c. 9 -	The County Councils (Bills in Parliament) Act, 1903.	Section two, except in so far as it provides that section one shall not apply to Scotland.
3 Edw. 7. c. 33	The Burgh Police (Scotland) Act, 1903.	Section fifty-five, in so far as it relates to Bills or Provisional Orders under the Private Legislation Procedure (Scotland) Acts, 1899 and 1933.
23 & 24 Geo. 5. c. 37.	The Private Legislation Procedure (Scotland) Act, 1933.	The whole Act.

CHAPTER 53.

An Act to restrict the opening of shops and trading on Sunday; and for other purposes connected therewith. [31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Every shop shall, save as otherwise provided by this Act, be closed for the serving of customers on Sunday :

Closing of
shops on
Sunday.

Provided that a shop may be open for the serving of customers on Sunday—

- (a) for the purposes of any transaction mentioned in the First Schedule to this Act; and
- (b) until after the expiration of nine months from the commencement of this Act for the purposes of any transaction mentioned in the Second Schedule to this Act.

2.—(1) The local authority may by order (in this Act referred to as a “partial exemption order”) made in accordance with the provisions of this Act provide that after the expiration of nine months from the commencement of this Act shops situated in their area or in such part thereof as is specified in the order may for the purposes of such of the transactions mentioned in the Second Schedule to this Act as may be so specified be open for the serving of customers on Sunday subject to the limitations hereafter provided.

Partial
exemption
orders.

(2) Subject to the provisions of this subsection, a partial exemption order shall not authorise a shop to be open for the serving of customers after ten o'clock on Sunday morning :

Provided that an order may authorise the serving of customers after ten o'clock on Sunday morning in shops to which the order applies in cases of emergency and in such other cases as may be specified in the order.

(3) A partial exemption order may contain such incidental, supplemental or consequential provisions as may appear to the local authority necessary or proper.

3.—(1) As respects shops which, by virtue of the provisions of this Act, may be open for the serving of customers on Sunday for the purpose of the sale of meals or refreshments for consumption elsewhere than at the shop at which they are sold, the local authority may by order made in accordance with the provisions of this Act provide that those shops or any class of those shops specified in the order, being shops situated in their area or in such part thereof as may be so specified, shall cease to be entitled to be open for the serving of customers on Sunday for that purpose :

Special
provisions
in respect
of the sale
of meals
and refresh-
ments off
the
premises.

Provided that no order made under this section shall—

- (a) apply to shops in which the sale of meals or refreshments for consumption at the shop forms a substantial part of the business carried on therein; or
- (b) prevent the sale on Sunday of meals and refreshments elsewhere than at a shop except to such extent and subject to such conditions as may be specified in the order.

(2) An order under this section may provide for the provisions thereof being in force throughout the year or during such periods as may be specified in the order, and may be made subject to such conditions as may be so specified.

Provisions
as to shops
where
several
trades or
businesses
are carried
on.

4. Where several trades or businesses are carried on in the same shop and any of those trades or businesses consist only of transactions of such a nature that, if they were the only transactions carried on in the shop, the provisions of this Act requiring the shop to be closed for the serving of customers for the whole or any part of Sunday would not apply to the shop, the shop may be kept open for the whole or any part of Sunday, as the case may be, for the purposes of those transactions alone, subject, however, to such conditions as may be prescribed.

Special
provisions
for holiday
resorts.

5. Where the area or any part of the area of a local authority is a district which is frequented as a holiday resort during certain seasons of the year, the local authority may by order provide that on such Sundays as may be specified in the order, shops or any class of shops, being shops situated in the district or in such part thereof as may be so specified may, subject to such conditions and during such hours as may be so specified, be open for the serving of customers for the purpose of any of the transactions specified in the Third Schedule to this Act or such of them as may be specified in the order :

Provided that the Sundays specified in any such order shall not be more than eighteen in any year.

6.—(1) The local authority shall, before making any order under the foregoing provisions of this Act, give public notice in the prescribed manner of their intention to make the order, specifying in the notice a period (not being less than the prescribed period) within which objections may be made to the making of the proposed order, and, if after taking into consideration any objections they have received, the local authority are satisfied that it is expedient to make the order and that the occupiers of not less than two-thirds in number of the shops or classes of shops to be affected by the order approve the order, they may make the order.

Procedure with respect to the making and revocation of orders.

(2) Where several trades or businesses are carried on in the same shop, the local authority may require the occupier of the shop to specify which trade or business he considers to be his principal trade or business, and no trade or business other than that so specified shall, for the purpose of determining whether the occupiers of not less than two-thirds in number of the shops to be affected by any order approve the order, be considered as carried on in the shop, unless the occupier thereof satisfies the local authority that it forms a substantial part of the business carried on in the shop.

(3) Any such order as aforesaid may be varied or revoked by a subsequent order made in the like manner and subject to the like provisions.

7.—(1) Subject to the provisions of this section, the occupier of any shop who is a person of the Jewish religion shall be entitled, upon making to the local authority an application in accordance with the provisions of this section, to have the shop registered under this section by the local authority, and so long as the shop is so registered then—

Special provisions for persons observing the Jewish Sabbath.

- (a) the shop shall be closed for all purposes connected with trade or business on Saturday; and
- (b) the provisions of this Act requiring the shop to be closed for the serving of customers on Sunday shall not apply until two o'clock in the afternoon; and
- (c) there shall be kept conspicuously placed in the shop a notice stating that it will be closed on Saturday and, if the shop will be open for the

serving of customers on Sunday after two o'clock in the afternoon for the purposes of any transaction for which it is permitted under this Act to be so open, specifying the hours during which, and the purposes for which, it will be so open.

(2) Any application for the registration of a shop under this section shall be in the prescribed form and shall be accompanied—

- (a) by a statutory declaration made by the occupier of the shop in such form as may be prescribed declaring that he conscientiously objects on religious grounds to carrying on trade or business on the Jewish Sabbath; and
- (b) by such further statutory or other declarations and certificates, if any, made by such persons, and in such form, as may be prescribed.

(3) For the purposes of this section, a shop occupied by a partnership or company shall be deemed to be occupied by a person of the Jewish religion if the majority of partners or of the directors, as the case may be, are persons of that religion, but not otherwise, and such a shop shall not be registered under this section unless the statutory declaration required by paragraph (a) of the last foregoing subsection is made by the majority of partners or directors and specifies the names and addresses of all the other partners or directors.

(4) If for the purpose of procuring the registration of any shop under this section any person knowingly or recklessly makes an untrue statement or untrue representation, he shall be liable, on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and fine.

(5) So long as a shop is registered under this section—

- (a) no other shop occupied by the same occupier shall be kept open for any purpose connected with trade or business on Saturday;
- (b) no person by whom the statutory declaration aforesaid has been made in connection with the application for the registration of the shop

shall be employed or engaged on the Jewish Sabbath about the business of any shop or shall so employ, or be directly concerned in the control or management of any partnership or company which so employs, any person.

(6) Where any person is convicted of a contravention of, or failure to comply with, any of the provisions of this section, the court may, in addition to any other penalty, order the registration of any shops occupied by him or by any partnership or company in the control or management of which he is directly concerned to be revoked :

Provided that the court shall not order the registration of any shop not occupied, or not occupied solely, by the person convicted to be revoked except after affording an opportunity to the occupier or to the other occupiers, as the case may be, to appear and be heard.

(7) If upon representations made to them it appears to the local authority that there is reason to believe—

- (a) that the occupier of any shop registered under this section is not a person of the Jewish religion ;
or
- (b) that a conscientious objection on religious grounds to carrying on business on the Jewish Sabbath is not genuinely held by the occupier of the shop, or in the case of a shop occupied by a partnership or company by the majority of the partners or of the directors, as the case may be ;

the local authority may furnish particulars of the case to such tribunal as may, after consultation with the London Committee of Deputies of the British Jews, be prescribed, and if that tribunal, after considering the case in accordance with such rules as may be prescribed, report to the local authority that in their opinion the occupier of the shop is not a person of the Jewish religion or that such a conscientious objection is not so held as aforesaid, the local authority shall revoke the registration of the shop, and upon the revocation thereof the registration under this section of all other shops occupied by the same occupier, whether in the area of that local authority or elsewhere, shall be deemed to be also revoked.

(8) In the event of any change in the occupation of a shop registered under this section, it shall be the duty of the person who becomes the occupier to serve on the local authority notice of the change, and in the event of any change in any partnership or among the directors of any company by which such a shop is occupied, it shall be the duty of the partnership, or of the company, as the case may be, to serve on the local authority a notice giving particulars of the change, and, whether or not such a notice is served, the registration of the shop shall, upon the expiration of a period of fourteen days from the date on which the change occurred, be deemed to be cancelled, unless within that period, or within such further time as may be allowed by the local authority, a fresh application under this section is made in respect of the shop :

Provided that, where such a fresh application is made by reason of a change in any partnership or among the directors of any company by which the shop is occupied, the local authority may dispense with the statutory or other declaration or certificates required by paragraph (a) of subsection (2) and by subsection (3) of this section in the case of any person who has made such a declaration in connection with a former application in respect of that shop or any other shop in the area of the local authority.

(9) The registration of any shop under this section shall be cancelled upon application in that behalf being made to the local authority by the occupier of the shop, but shall not be so cancelled during the period of twelve months from the date on which an application for registration of the shop was last made.

(10) Where an application is made to a local authority in accordance with the provisions of this section for the registration of a shop under this section—

- (a) the local authority shall refuse to register the shop if the registration of that shop has been revoked or has been cancelled under the last foregoing subsection while the shop was in the occupation of the applicant; and
- (b) the local authority may refuse to register the shop if the registration of that shop or of any other shop occupied or formerly occupied by the applicant, or by any partnership or company of which he was a partner or director, has been revoked or cancelled.

(11) Where the local authority refuse to register a shop in accordance with the provisions of paragraph (b) of the foregoing subsection, they shall serve notice of their refusal upon the applicant, and, if the applicant is aggrieved by such refusal, he may, within twenty-one days of the date when the notice was so served upon him, appeal against such refusal to a court of summary jurisdiction for the petty sessional division in which the shop is situated, and the appellant or the local authority, if aggrieved by the order made by the court of summary jurisdiction, may appeal against that order to quarter sessions.

(12) This section shall apply to persons who are members of any religious body regularly observing the Jewish Sabbath as it applies to persons of the Jewish religion, and references therein to persons of the Jewish religion shall be construed accordingly as including any person who is a member of such a body, and in the application of this section to such persons this section shall have effect as if for the reference therein to the London Committee of Deputies of the British Jews there were substituted a reference to such body as appears to the Secretary of State to represent such persons.

(13) As respects any shop which is for the time being registered under this section, the Shops Acts, 1912 to 1934, shall have effect subject to the following modifications (that is to say)—

- (a) subsection (1) of section one and subsection (1) of section four of the Shops Act, 1912, shall have effect as if for references therein to week-days there were substituted references to week-days other than Saturdays; and
- (b) subsection (2) of the said section four shall have effect as if the word "Friday" were substituted for the word "Saturday" wherever the last-mentioned word occurs.

8.—(1) If the Common Council of the City of London or the London County Council are satisfied that any part of their respective areas—

- (a) is a district in which it was, before the first day of January, nineteen hundred and thirty-six, customary to hold street markets on Sunday; or

Special
provisions
for London.

(b) is a district, being a district within the City of London or the metropolitan boroughs of Bethnal Green, Shoreditch, or Stepney, in which it was customary before the said date for the majority of the shops in the district to be kept open on Sunday and that, having regard to the character and habits of the population in the district, the application of the provisions of this Act requiring shops to be closed on Sunday would cause undue hardship;

they may, by order made in accordance with the provisions of this section, authorise such shops or classes of shops as may be specified in the order, being shops situated in the district or in such parts of the district as may be so specified, to be open for the serving of customers on Sunday until two o'clock on Sunday afternoon subject to the conditions hereinafter mentioned :

Provided that, before making an order applying to any district referred to in paragraph (b) of this subsection the council shall take steps to ascertain the wishes of the occupiers of such shops as appear to them to be likely to be affected, and, if they are satisfied that the occupiers of a majority of any class of such shops are opposed to the making of the order, the council shall exclude that class of shops from the operation of the order.

(2) Any order made under this section authorising shops to be kept open for the serving of customers on Sunday shall fix a week-day upon which such shops must be closed (in this section referred to as " the closing day"), and may fix different days for different classes of shops, and the occupier of a shop who intends to keep open the shop on Sunday in pursuance of the order shall give notice in writing to the Common Council of the City of London or to the London County Council, as the case may be, of his intention so to do, and he shall not keep open the shop on Sunday unless such notice has been given and the shop has been closed on the closing day in the preceding week in like manner and for the like purposes as it would, but for the order, have been required by this Act to be closed on Sunday :

Provided that—

(a) the closing day so fixed shall be a day other than the day fixed for the weekly half-holiday

by an order made under section four of the Shops Act, 1912, and the occupier of a shop shall not be entitled to keep his shop closed for the purposes of the weekly half-holiday required by the provisions of that section on the closing day:

- (b) where the closing day so fixed is a day other than Saturday, the order shall provide for enabling Saturday to be substituted as the closing day as respects any shop.

(3) Any order made under this section shall contain such provisions as may be necessary or expedient to secure—

- (a) that where a notice has been given under the last foregoing subsection to the Common Council of the City of London or to the London County Council by the occupier of a shop, the shop shall not be kept open on the closing day during a period of not less than six months from the date when the notice was given; and
- (b) that so long as the shop is kept open on Sunday in pursuance of the order, such notices as the Common Council of the City of London or the London County Council, as the case may be, may require, shall be kept exhibited in the shop.

(4) The Common Council of the City of London or the London County Council shall, before making any order under this section, give public notice of their intention to make the order defining by reference to a map the district or parts of the district to which the order is to apply and the times and places at which the map may be inspected, and specifying a period (not being less than four weeks) within which objections may be made to the making of the proposed order, and if, after taking into consideration any objections they have received, the Common Council of the City of London or the London County Council are satisfied that it is expedient to make the order, they may make the order, and the provisions of subsections (2) and (3) of section six of the Shops Act, 1912 (which relate to the disallowance and confirmation of closing orders), and the provisions of section sixteen of that Act (which relate to local inquiries) shall have effect as if any such order, or any order varying or

revoking such an order, were a closing order under that Act.

(5) An order made under this section may be varied or revoked by a subsequent order made in the like manner and subject to the like provisions.

Provisions
as to
delivery
of goods.

9. Goods sold retail to a customer shall not be delivered or dispatched for delivery from a shop at any time when under the provisions of this Act a customer could not be served with those goods in that shop :

Provided that the provisions of this section shall not apply—

(a) on any Sunday being also Christmas Day; or

(b) on any Sunday when the succeeding Monday is Christmas Day.

Miscel-
laneous
savings.

10.—(1) Nothing in this Act shall prevent—

(a) the sale, dispatch or delivery of victuals, stores or other necessities required by any person for a ship or aircraft on her arrival at, or immediately before her departure from, a port or aerodrome;

(b) the sale, dispatch or delivery of goods to a club for the purposes of the club;

(c) the cooking on Sunday, before half-past one o'clock in the afternoon, at any shop of any food brought to that shop by a customer and required by him for consumption on that day, or the dispatch or delivery not later than the hour aforesaid of any such food so cooked.

(2) Where any person is charged with keeping open a shop for the serving of customers, or with dispatching or delivering goods, in contravention of this Act, it shall be a good defence to prove that reasonable grounds existed for believing that the goods supplied, dispatched or delivered were required in the case of illness.

(3) Where any person is charged with keeping open for the serving of customers in contravention of this Act a shop which is permitted to be open until a certain hour by reason of his having served a customer after that hour, it shall be a good defence to prove that the customer was in the shop before that hour and left the shop not later than half-an-hour after that hour.

(4) Notwithstanding anything in section one of this Act, any person carrying on or employed in the business of a hairdresser or barber may, at any time, for the purposes of that business attend any person—

- (a) in any place, if such attendance is necessary by reason of the bodily or mental infirmity of that person; or
- (b) in any hotel or club, if that person is resident therein.

(5) If the local authority are satisfied that any person engaged in handicraft at his home is dependent for his livelihood upon the sale on Sunday of articles produced by him in the course of his handicraft to such extent that the prohibition of such sale would involve substantial hardship, they may grant to him a certificate exempting him during such period as may be specified in the certificate from any of the provisions of this Act in respect of the sale of those articles during such hours and subject to such conditions as may be so specified.

(6) This Act shall not apply to any sea-going ship.

(7) Nothing in this Act shall apply to the carrying on on Sunday of the business of a retail dealer in butchers meat as defined by the Retail Meat Dealers' Shops (Sunday Closing) Act, 1936.

26 Geo. 5. &
1 Edw. 8.
c. 30.

11.—(1) Save as is otherwise hereinafter provided, no person shall be employed on Sunday about the business of a shop which is open for the serving of customers on that day unless the following requirements are complied with—

Provisions
respecting
shop
assistants.

- (a) in the case of a person so employed for more than four hours on any Sunday, that person shall—

- (i) receive in respect of his employment on that Sunday a whole holiday on a day other than that of his statutory half-holiday, if any, and that whole holiday shall be on a weekday of the week beginning with that Sunday unless he has, in respect of his employment on that Sunday, already received such a holiday on a weekday of the previous week;

- (ii) not be employed about the business of a shop on more than two other Sundays in the same month;

- (b) in the case of a person not so employed for more than four hours on a Sunday in any month, that person shall receive in respect of his employment on any Sunday in the month a half-holiday in addition to his statutory half-holiday, if any, and that additional half-holiday shall be on a weekday of the week beginning with that Sunday unless he has, in respect of his employment on that Sunday, already received such a half-holiday on a weekday of the previous week :

Provided that this subsection shall not apply—

- (i) to any person employed wholly or mainly in connection with the sale of intoxicating liquor; or
- (ii) to any shop assistant employed in any premises for the sale of refreshments to whom the provisions of paragraphs (a), (b), (c) and (d) of subsection (1) of section one of the Shop Act, 1913, apply by virtue of an election made under that subsection by the occupier of the premises; or
- (iii) to any person employed wholly or mainly as a milk roundsman; or
- (iv) to any person wholly employed in the transaction of post office business; or
- (v) to any registered pharmacist within the meaning of the Pharmacy and Poisons Act, 1933, employed in connection with the sale or supply of medicines or medical or surgical appliances in any premises required to be kept open on Sunday for the serving of customers in pursuance of a contract between the occupier of the premises and an insurance committee within the meaning of the National Health Insurance Act, 1936, if he is not employed for more than two hours on that Sunday, and has not been employed on the previous Sunday, and if on a weekday (other than the day of the statutory half-holiday) of the previous week or of the week commencing with the Sunday on which he is so employed,

2 & 3
Geo. 5. c. 24.

23 & 24
Geo. 5. c. 25.

26 Geo. 5. &
1 Edw. 8.
c. 32.

either he has not been, or will not be, employed before half-past ten o'clock in the morning, or has not been, or will not be, employed after six o'clock in the afternoon.

(2) Nothing in this Act shall authorise the employment of any person at any time when it would under the Shops Acts, 1912 to 1934, or the Sunday Entertainments Act, 1932, be unlawful for him to be so employed. 22 & 23
Geo. 5. c. 51.

(3) For the purposes of this and the two next following sections—

- (a) a person who works about the business of a shop for the occupier thereof shall be deemed to be employed notwithstanding that he receives no reward for his labour;
- (b) in relation to any person employed about the business of a shop the following expressions have the meanings hereby respectively assigned to them, that is to say, “whole holiday” means a day on which that person is not employed about the business of that shop; “statutory half-holiday” means a day on which under section one of the Shops Act, 1912, he is not employed about the business of that shop after half-past one o'clock in the afternoon; “half-holiday” means a day on which he is either not employed before, or not employed after half-past one o'clock in the afternoon of that day about the business of that shop.

12. The occupier of any shop which by virtue of this Act is open for the serving of customers on Sunday shall— Notices.

- (a) cause to be kept conspicuously posted in the shop a notice in the prescribed form stating the terms of any order applying to the shop; and
- (b) keep in the prescribed form and in the prescribed manner a record of the names of and the hours worked by all the persons employed about the business of the shop on Sunday who are entitled to any holidays prescribed by the foregoing section of this Act, and of the respective days of the week upon which those persons receive those holidays.

Extension
of provi-
sions of this
Act to retail
trading else-
where than
in shops.

13. Subject as hereinafter provided, the provisions of this Act shall extend to any place where any retail trade or business is carried on as if that place were a shop, and as if in relation to any such place the person by whom the retail trade or business is carried on were the occupier of a shop :

Provided that—

- (a) the following provisions of this Act shall extend only to shops, that is to say, those provisions of section six and section eight which relate to the approval by occupiers of shops of orders made under those sections, the provisions of paragraph (c) of subsection (1) of section seven and the provisions of paragraph (a) of section twelve;
- (b) the provisions of section eleven of this Act shall, in relation to any place not being a shop, apply only to persons wholly or mainly employed in connection with the retail trade or business carried on thereat;
- (c) the provisions of section one of this Act shall, as applied by this section, have effect as if there were included in the First Schedule to this Act the sale by fishermen of freshly caught fish (including shell-fish), and the sale at a farm, smallholding, allotment or similar place, of produce produced thereon.

Enforce-
ment.

14.—(1) In the case of any contravention of, or failure to comply with, any of the provisions of this Act, the occupier of the shop shall be liable to a fine not exceeding—

- (a) in the case of a first offence, five pounds;
- (b) in the case of a second or subsequent offence, twenty pounds;

and sections thirteen and fourteen of the Shops Act, 1912, which relate to the enforcement of that Act shall apply with respect to the provisions of this Act as they apply with respect to the provisions of that Act, save that in those sections the word “shop” shall, in their application to the provisions of this Act which apply to retail trade or business carried on at any place not being a shop, include a reference to any such place.

(2) A person who carries on the business of a shop, or carries on retail trade or business at any place not being a shop, on Sunday in accordance with the provisions of this Act, shall not be deemed to commit an offence against any of the following enactments, namely—

- (a) the Act of the twenty-seventh year of His late Majesty King Henry the Sixth, chapter Five (which restricts the holding of fairs and markets on certain days); or 27 Hen. 6.
c. 5.
- (b) the Act of the third year of His late Majesty King Charles the First, chapter Two, for the further reformation of sundry abuses committed on the Lord's Day commonly called Sunday; or 3 Car. 1.
c. 2.
- (c) the Sunday Observance Act, 1677. 29 Car. 2.
c. 7.

15.—(1) In this Act, unless the context otherwise requires, the expressions “local authority,” “retail trade or business,” “shop,” and “week” have the meanings respectively assigned to them by the Shops Act, 1912, and the expression “prescribed” means prescribed by regulations made under section seventeen of that Act. Interpre-
tation.

(2) Any reference in this Act to any other enactment shall, unless the context otherwise requires, be construed as a reference to that enactment as amended by any subsequent enactment, including this Act.

16.—(1) This Act may be cited as the Shops (Sunday Trading Restriction) Act, 1936, and this Act and the Shops Acts, 1912 to 1934, may be cited together as the Shops Acts, 1912 to 1936. Short title,
citation,
application,
com-
mencement
and repeal.

(2) This Act shall not extend to Scotland or Northern Ireland.

(3) This Act shall come into operation on the first day of May, nineteen hundred and thirty-seven.

(4) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

Sections 1,
13.

FIRST SCHEDULE.

TRANSACTIONS FOR THE PURPOSES OF WHICH A SHOP
MAY BE OPEN FOR THE SERVING OF CUSTOMERS
ON SUNDAY.

1. The sale of—

- (a) intoxicating liquors;
- (b) meals or refreshments whether or not for consumption at the shop at which they are sold, but not including the sale of fried fish and chips at a fried fish and chip shop;
- (c) newly cooked provisions and cooked or partly cooked tripe;
- (d) table waters, sweets, chocolates, sugar confectionery and ice-cream (including wafers and edible containers);
- (e) flowers, fruit and vegetables (including mushrooms) other than tinned or bottled fruit or vegetables;
- (f) milk and cream not including tinned or dried milk or cream, but including clotted cream whether sold in tins or otherwise;
- (g) medicines and medical and surgical appliances—
 - (i) at any premises registered under section twelve of the Pharmacy and Poisons Act, 1933; or
 - (ii) by any person who has entered into a contract with an insurance committee under the National Health Insurance Act, 1936, for the supply of drugs and appliances;
- (h) aircraft, motor, or cycle supplies or accessories;
- (i) tobacco and smokers' requisites;
- (j) newspapers, periodicals and magazines;
- (k) books and stationery from the bookstalls of such terminal and main line railway or omnibus stations, or at such aerodromes as may be approved by the Secretary of State;

- (l) guide books, postcards, photographs, reproductions, photographic films and plates, and souvenirs— 1st SCH.
—cont.

(i) at any gallery, museum, garden, park or ancient monument under the control of a public authority or university; or

(ii) at any other gallery or museum, or any place of natural beauty or historic interest, or any zoological, botanical or horticultural gardens, or aquarium, if and to the extent that the local authority certify that such sale is desirable in the interests of the public; or

(iii) in any passenger vessel within the meaning of Part II of the Finance (1909-1910) Act, 1910, while engaged in carrying passengers; 10 Edw. 7. &
1 Geo. 5. c. 8.

(m) photographs for passports;

(n) requisites for any game or sport at any premises or place where that game or sport is played or carried on;

(o) fodder for horses, mules, ponies and donkeys at any farm, stables, hotel or inn.

2. The transaction of—

(a) post office business;

(b) the business carried on by a funeral undertaker.

SECOND SCHEDULE.

Sections 1, 2.

TRANSACTIONS IN RESPECT OF WHICH A PARTIAL EXEMPTION ORDER MAY BE MADE UNDER SECTION TWO OF THIS ACT.

The sale of —

(a) bread and flour confectionery, including rolls and fancy bread;

(b) fish (including shell-fish);

(c) groceries and other provisions commonly sold in grocers shops;

in so far as such sales are not included amongst the transactions mentioned in the First Schedule to this Act.

Section 5.

THIRD SCHEDULE.

TRANSACTIONS IN RESPECT OF WHICH AN ORDER MAY
BE MADE UNDER SECTION FIVE OF THIS ACT.

The sale of—

- (a) any articles required for the purposes of bathing or fishing;
- (b) photographic requisites;
- (c) toys, souvenirs and fancy goods;
- (d) books, stationery, photographs, reproductions and postcards;
- (e) any article of food.

Section 16.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
3 Geo. 4. c. cvi.	An Act to repeal the Acts now in force relating to bread to be sold in the City of London and the liberties thereof, and within the weekly bills of mortality, and ten miles of the Royal Exchange, and to provide other regulations for the making and sale of bread, and preventing the adulteration of meal flour and bread within the limits aforesaid.	In section sixteen, the words from "or shall on any other part of the said day" to "of any sort or kind"; the words "or deliver"; "or delivered"; and the proviso.

4TH SCH.
—cont.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
6 & 7 Will. 4. c. 37.	The Bread Act, 1836	In section fourteen, the words from "or shall on any other part of the said day" to "of any sort or kind"; the words "or deliver"; "or delivered"; the words from "provided nevertheless" to "in this Act contained".
20 & 21 Geo. 5. c. 35.	The Hairdressers and Barbers Shops (Sunday Closing) Act, 1930.	The whole Act.

CHAPTER 54.

An Act to amend the Weights and Measures Acts, 1878 to 1926, by making provision with respect to the sale of coal in Scotland, and to repeal certain existing enactments with respect thereto.

[31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. As from the passing of this Act, Part II of the Weights and Measures Act, 1889, shall apply to Scotland and section thirty-one of that Act and sections four hundred and nineteen to four hundred and twenty-four, inclusive, of the Burgh Police (Scotland) Act, 1892, and section ten of the Local Government (Scotland) Act, 1908, in so far as it extends those sections to counties, are hereby repealed.

Application of Part II of the Weights and Measures Act, 1889, to Scotland.
52 & 53 Vict. c. 21.
55 & 56 Vict. c. 55.
8 Edw. 7. c. 62.